

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Chaves	Team: Squad #10	CCRB Case #: 201806608	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 07/26/2018 11:20 AM, Wednesday, 08/01/2018 12:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/26/2020	Precinct: 120		
Date/Time CV Reported Fri, 08/10/2018 5:45 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 08/10/2018 5:45 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DTS Gregory Smith	970	939487	120 PCT
2. POM Robert Dominicci	06048	955888	120 PCT
3. An officer			120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DTS Gregory Smith	Abuse: Detective Gregory Smith entered § 87(2)(b) in Staten Island.	A . Exonerated
B . POM Robert Dominicci	Abuse: Police Officer Robert Dominicci entered entered § 87(2)(b) in Staten Island.	B . Exonerated
C . DTS Gregory Smith	Abuse: Detective Gregory Smith forcibly removed § 87(2)(b) to the hospital.	C . Exonerated
D . POM Robert Dominicci	Abuse: Police Officer Robert Dominicci forcibly removed § 87(2)(b) to the hospital.	D . Exonerated
E . An officer	Abuse: An officer damaged § 87(2)(b) s property.	E . Officer(s) Unidentified
§ 87(4-b), § 87(2)(g)	§ 87(4-b), § 87(2)(g)	
§ 87(4-b), § 87(2)(g)	§ 87(4-b), § 87(2)(g)	
§ 87(4-b), § 87(2)(g)	§ 87(4-b), § 87(2)(g)	

Case Summary

On August 10, 2018, § 87(2)(b) appeared in person at the CCRB and filed the following complaint.

At approximately 11:20 a.m., on July 26, 2018, Detective Gregory Smith and Police Officer Robert Dominicci of the 120th Precinct responded to § 87(2)(b)'s home, located at § 87(2)(b) Avenue in Staten Island, along with members of the § 87(2)(b) Mobile Crisis Unit (MCU). Prior this incident, § 87(2)(b) was already known to the NYPD as being involved in a longstanding neighborhood dispute. In this incident, the MCU had received complaints from § 87(2)(b)'s neighbors and arranged to visit her home.

The officers and MCU members tried to speak to § 87(2)(b) but she refused to answer her front door. The officers then went through § 87(2)(b)'s fence and walked around to the rear of her house (**Allegation A: Abuse of Authority: Entry of Premises: Exonerated, Allegation B: Abuse of Authority: Entry of Premises: Exonerated**). The emergency workers spoke to § 87(2)(b) who eventually came out of her house, was escorted into an ambulance, and was taken to § 87(2)(b) for psychiatric evaluation (**Allegation C: Abuse of Authority: Forcible Removal to Hospital: Exonerated, Allegation D: Abuse of Authority: Forcible Removal to Hospital: Exonerated**). § 87(2)(b) alleged that at an unspecified point in the incident, emergency personnel damaged her fence (**Allegation E: Abuse of Authority: Property Damage: Officer Unidentified**).

§ 87(4-b), § 87(2)(g)

The investigation obtained no video footage of this incident.

Findings and Recommendations

Allegation A – Abuse of Authority: Detective Gregory Smith entered § 87(2)(b) Avenue in Staten Island.

Allegation B – Abuse of Authority: Police Officer Robert Dominicci entered § 87(2)(b) Avenue in Staten Island.

§ 87(2)(b) was interviewed on August 10, 2018 (**Board Review 01**). Detective Smith was interviewed on January 3, 2019 (**Board Review 02**). Police Officer Dominicci was interviewed on February 13, 2018 (**Board Review 03**).

It is undisputed that prior to this incident § 87(2)(b) was involved in a set of longstanding disputes with her neighbors. § 87(2)(b)'s main dispute was with § 87(2)(b), her next-door neighbor and an NYPD police officer. Prior to this incident, § 87(2)(b) had repeatedly filed complaints against § 87(2)(b).

At approximately 11:20 a.m. on July 26, 2018, § 87(2)(b) was inside of her house when a § 87(2)(b) MCU member approached her front door and told her that she had to go to the hospital. § 87(2)(b) initially refused, and had a longer conversation with the MCU member and police officers through the back door of her house. § 87(2)(b) eventually came outside, was escorted into an ambulance, and was transported to § 87(2)(b) for psychiatric evaluation. Officers did not use force against § 87(2)(b) or ever enter her house.

In her sworn statement, § 87(2)(b) struggled to recall specific details of this incident, including the date and time. § 87(2)(b)

§ 87(2)(b) initially stated that a black, male § 87(2)(b) employee approached her house and knocked on the window. He told her that he was from § 87(2)(b) and that she needed to come out so she could be taken to the hospital. § 87(2)(b) asked why, and he said that she needed to be evaluated. § 87(2)(b) said that she had a pit-bull in the house and was not opening the door, and that he should come around to the back of the house. The § 87(2)(b) employee told her to hurry up and come outside.

Later in her sworn statement, § 87(2)(b) stated that the § 87(2)(b) employee and police officers entered her backyard without permission, and caused a “crack” in the gate or fence (see **Allegations E and F**). § 87(2)(b)'s backyard is part of her private property and is surrounded by a wooden fence. § 87(2)(g)

§ 87(2)(b) She stated that, over the course of the incident, nobody came inside of her house. However, she also described her rear door's lock as being broken in an unspecified previous incident, and said that it was still broken during this incident. She also alleged that she saw Detective Smith holding a key in his hand during this incident and that he had used this key to open her rear door. § 87(2)(b) did not see Detective Smith do this, but believed that he did it because he was holding a key while standing near her door. § 87(2)(b) did not know how or why Detective Smith would have a key to her door.

In his interview, Detective Smith stated that over his previous visits to § 87(2)(b) Avenue, § 87(2)(b) never answered her front door and would sometimes barricade her front door with a couch. As a result, the MCU members and police officers walked through an unlocked fence and to the rear of the house. Detective Smith was not sure whether the fence belonged to § 87(2)(b) or her next-door neighbor.

One of the MCU members or officers knocked on § 87(2)(b)'s back door. § 87(2)(b) quickly came to the rear window and refused to open the back door. Detective

Smith recalled that the window glass was open but that there was a screen between § 87(2)(b) and the medical staff. The medical staff and officers could see and hear § 87(2)(b) clearly. § 87(2)(b)'s dog, which has historically been hostile towards officers and other visitors, was also at the window but “friendly” during this incident. When asked whether any of the medical staff or officers entered § 87(2)(b)'s house, Detective Smith said no. He elaborated that no officer would ever enter her home, absent exigent circumstances, without help from ESU because of the safety threat posed by her dog. The dog is a “stocky” pit bull.

In his interview, Police Officer Dominicci stated that either an officer or an MCU member knocked on § 87(2)(b)'s front door. She came to the front door and began “yelling and screaming.” § 87(2)(b) “screamed” at the emergency workers, asking who they were, why they were there, and what they wanted. She then went to the rear of the house. The emergency workers tried to speak to § 87(2)(b) but there were glass panes covering the door and Police Officer Dominicci believed that § 87(2)(b) could not hear them.

The four emergency workers walked along the side of § 87(2)(b)'s house to the rear of the building. § 87(2)(b) did not indicate that the emergency workers should come to the back door. Police Officer Dominicci did not recall a fence or other barrier between the front area of the house and the rear. There was open yard on either side of the house, and the emergency workers did not have to pass through any barrier or gate. There was a fence running along the edge of § 87(2)(b)'s property, separating it from her neighbor's.

Someone (Police Officer Dominicci could not recall who) knocked on the home's rear door and the emergency workers spoke to her for approximately 30 minutes. § 87(2)(b) eventually agreed to go to the hospital, and came out of the rear door under her own power. No emergency worker ever entered her house.

Police officers may enter a civilian's property based on that civilian's consent, and this consent can be granted by both word and deed. People v. Davis, 120 A.D.2d 606, 502 N.Y.S.2d 80 (App. Div. 1986) (**Board Review 04**).

§ 87(2)(b) initially stated that she explicitly told the § 87(2)(b) MCU member to walk around to the back of her house because of the presence of her pit bull, § 87(2)(g). While § 87(2)(b) later denied giving anyone permission to enter her back yard, she acknowledged having a pit bull during this incident which Detective Smith, described as a tactical concern and the reason for meeting § 87(2)(b) at the back door. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

it is therefore recommended that **Allegations A** and **B** be **exonerated**.

Allegation C – Abuse of Authority: Detective Gregory Smith forcibly removed § 87(2)(b) to the hospital.

Allegation D – Abuse of Authority: Police Officer Robert Dominicci forcibly removed § 87(2)(b) to the hospital.

It is undisputed that the first person to approach § 87(2)(b) and indicate that she needed to go to a hospital was a § 87(2)(b) MCU member, not an NYPD police officer.

In his sworn statement, Detective Smith explained that he had set up a wellness check, in advance, for the incident date with § 87(2)(b)'s case worker and nurse. Detective Smith spoke to the case worker, who was unable to schedule a specific time to conduct the wellness check. On the incident date, Detective Smith was doing an overtime tour conducting Narcan overdose visits when the case worker contacted him and said that he was headed to § 87(2)(b)'s house to conduct the wellness check. The case worker requested that Detective Smith be present because § 87(2)(b) has historically been uncooperative with medical and emergency personnel. The wellness check was not scheduled or conducted in response to any recent specific incident, report, or 911 call, but rather as part of an ongoing care routine.

§ 87(2)(g)
§ 87(2)(b) s § 87(2)(b) medical records (**Board Review 05**) contain written statements from multiple hospital employees. § 87(2)(b) a registered nurse who was part of the MCU, wrote that the MCU was referred to § 87(2)(b)'s case by “NYPD community affairs.” On the incident date, the MCU parked in front of § 87(2)(b)'s house to wait for NYPD officers to arrive. § 87(2)(b) began videotaping the MCU from her window. There were 15 to 20 bags of feces hanging from § 87(2)(b)'s fence, and what appeared to be dog feces on the floor of her home (visible through her front door). There was a “powerful stench of feces and urine.” § 87(2)(b) repeatedly threatened to sue the MCU for harassing her. § 87(2)(b) was “hypervocal with pressured speech.” § 87(2)(b) recorded § 87(2)(b) as having “paranoid delusions.” 911 was called, and § 87(2)(b) was transported to the § 87(2)(b) Comprehensive Psychiatric Emergency Program (CPEP).

According to NYPD Patrol Guide Procedure 216-01, when a civilian requires medical aid for any reason, including mental illness, officers must cooperate with ambulance and hospital personnel in every reasonable manner (**Board Review 06**).

It is undisputed that MCU medical staff, not NYPD officers, first responded to this incident and were the first people to indicate that § 87(2)(b) needed to go to a hospital.

§ 87(2)(g)
§ 87(2)(b) it is recommended that **Allegations C and D** be **exonerated**.

Allegation E – Abuse of Authority: An officer damaged § 87(2)(b)'s property.

In her sworn statement, § 87(2)(b) had difficulty describing the actions that the officers and MCU staff took. Her back yard was surrounded by a wooden fence, and the emergency workers caused a “crack” in the gate or fence. § 87(2)(b) did not describe this crack’s location with any further specificity, describe how this damage occurred, or provide any photographs of the damaged area.

In his interview, Detective Smith stated that he entered § 87(2)(b)'s back yard by walking through an unlocked gate. He denied taking any action that damaged § 87(2)(b)'s fence.

In his interview, Police Officer Dominicci stated that the path along the side of § 87(2)(b)'s home was open, without any gate or fence. He denied taking any action that damaged the fencing running along the property line of § 87(2)(b)'s yard.

As previously noted, it is undisputed that § 87(2)(b) was removed to the hospital without the use of physical force. She was never handcuffed or restrained, and walked under her own power into an ambulance. Similarly, by § 87(2)(b)'s own account, she remained inside of her own house while emergency workers made their initial entry into her back yard. She provided no explanation of how she would have observed the officers damage her fence, and did not describe seeing this happen. She did not specify which person or people allegedly damaged her property, or whether this action was taken by a police officer as opposed to a § 87(2)(b) MCU member. § 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as **officer unidentified**.

§ 87(4-b), § 87(2)(g)

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Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to 11 prior CCRB complaints and has been named as a victim in twenty prior allegations (**Board Review 07**).

- § 87(2)(b)

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- § 87(2)(b) [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]

- Detective Smith has been a member of service for thirteen years and has been a subject in one previous CCRB complaint and two allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
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Mediation, Civil and Criminal Histories

- This complaint was unsuitable for mediation.
- A request for any Notice of Claim regarding this incident has been submitted to the New York City Comptroller’s Officer, and the results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad No.: 10

Investigator:	_____ Signature	_____ Print Title & Name	_____ Date
Squad Leader:	_____ Signature	_____ Print Title & Name	_____ Date
Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date